

2:00 PM

LINE 5

25-CIV-03590

ALICIA WOODFALL-JONES VS. MATT FABRY, ET AL.

ALICIA WOODFALL-JONES

MATT FABRY

ARIEL STRAUSS

ROBERT CARROLL MAY

DEFENDANTS AND REAL PARTIES IN INTEREST CROWN CASTLE FIBER LLC AND VERIZON WIRELESS' DEMURRER TO PETITIONER ALICIA WOODFALL-JONES' VERIFIED PETITION FOR WRIT OF MANDATE AND DECLARATORY RELIEF

TENTATIVE RULING:

The court rules on Crown Castle Fiber LLC's (Crown Castle) demurrer as follows:

As a preliminary matter, the court notes that there is an application to appear as counsel pro hac vice. Since out-of-state attorneys cannot work on a case until they have been admitted pro hac vice in this state, the court would hear the application through an ex parte application. The parties are reminded that all parties and the State Bar must receive notice of the ex parte. See the court's local rules for the procedures for ex parte applications.

The parties are to APPEAR.

First, the court is unfamiliar with this statutory scheme and will need to obtain a more straightforward explanation of the statutory scheme and a chronology of events in this case.

Second, it appears to the court that the parties are attempting to have the court decide key issues on demurrer through both sides requesting judicial notice of documents, but that there are contested facts that cannot be resolved on demurrer. As explained by one Court of Appeal:

"Judicial notice may not be taken of any matter unless authorized or required by law." (Evid.Code, § 450.) Matters that are subject to judicial notice are listed in Evidence Code sections 451 and 452. A matter ordinarily is subject to judicial notice only if the matter is reasonably beyond dispute. (*Post v. Prati* (1979) 90 Cal.App.3d 626, 633, 153 Cal.Rptr. 511.) Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9, 84 Cal.Rptr.2d 843, 976 P.2d 214.) *StorMedia* stated: "In ruling on a demurrer, a court may consider facts of which it has taken judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) This includes the existence of a document. When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable. (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374 [228 Cal.Rptr. 878].)" (*Ibid.*)

Joslin v. H.A.S. Ins. Brokerage, supra, 184 Cal.App.3d at page 374, 228 Cal.Rptr. 878 stated: “Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. (See *Middlebrook–Anderson Co. v. Southwest Sav. & Loan Assn.* (1971) 18 Cal.App.3d 1023, 1038 [96 Cal.Rptr. 338].) On a demurrer a court's function is limited to testing the legal sufficiency of the complaint. (*Marina Tenants Assn. v. Deauville Marina Development Co.* (1986) 181 Cal.App.3d 122, 127 [226 Cal.Rptr. 321].) ‘A demurrer is simply not the appropriate procedure for determining the truth of disputed facts.’ (*Ramsden v. Western Union* (1977) 71 Cal.App.3d 873, 879 [138 Cal.Rptr. 426].) The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable. (See *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605 [176 Cal.Rptr. 824].)” *Joslin, supra*, at page 375, 228 Cal.Rptr. 878 stated further, “ ‘judicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed.’ (*Cruz v. County of Los Angeles* (1985) 173 Cal.App.3d 1131, 1134 [219 Cal.Rptr. 661].)”

(*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113–114; *Panterra GP, Inc. v. Superior Court of Kern County* (2022) 74 Cal.App.5th 697, 712–713.)

The court wishes to discuss with the parties whether the court must decide disputed facts and/or the interpretation of documents in this demurrer and, whether it is necessary or would be better to have the court decide the matter on an evidentiary record. The issue of plaintiff's standing appears tied to the issue of when Crown Castle's application was approved.

2:00 PM

LINE 6

25-CIV-06742

TONG LUO, ET AL. VS. COGNITION AI, INC.

TONG LUO
COGNITION AI, INC.

ELIZABETH PIPKIN
JOHN D. PERNICK

PLAINTIFFS AND CROSS-DEFENDANTS TONG LUO'S AND MIN HUI'S MOTION TO STRIKE THE PUNITIVE DAMAGES PRAYER IN DEFENDANT AND CROSS-COMPLAINANT COGNITION AI'S CROSS-COMPLAINT

TENTATIVE RULING:

Plaintiffs/Cross-Defendants, Tong Luo's and Min Hui's motion to strike the prayer for punitive damages in the cross-complaint filed by Defendant and Cross-Complainant, Cognition AI, Inc., on April 30, 2026, is GRANTED. Leave to amend is GRANTED. Cross-Complaint Cognition AI, Inc. ("Cognition") has ten (10) days from service of written notice of entry of order to file and serve an amended Cross-Complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

Background

Defendant/Cross-Complainant Cognition is a Bay Area artificial intelligence company. In March 2024, Cognition leased plaintiffs' one-acre gated Atherton home and property (hereinafter "subject property").

Cognition's cross-complaint alleges that plaintiffs/cross-defendants knew or should have known the property suffered from the following undisclosed defects, safety hazards, and code violations:

- inoperable carbon monoxide detectors;
- defective swimming pool lighting that a technician determined posed a serious risk of harm;
- the entry gate failed four times in four weeks, repeatedly sticking open and leaving the property exposed, which forced Cognition to hire outside security;
- plumbing failed beneath the driveway, cutting off water service for days and requiring the driveway to be excavated at a cost of roughly \$27,000, due to alleged ineffective installation; and
- the HVAC system failed across much of the house.

Cross-Defendants allegedly disclosed none of this before tendering possession to Cognition, and they refused to remediate or reimburse for these expenses after Cognition gave them notice. The cross-complaint raises four causes of action: breach of contract; breach of implied warranty of habitability; reimbursement; and unjust enrichment and requests compensatory, exemplary and punitive damages. (Declaration of James O'Donnell iso mtn to strike, Ex. A [Cross-Compl.] p.9.)
